

Court No. - 21

Case :- WRIT - C No. - 21149 of 2024

Petitioner :- Ram Prasad Vishwakarma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Lavkush Kumar Shukla

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Learned counsel for the respondent- Electricity Department prays for and is granted two weeks' time to complete his instructions.

2. Put up this case as fresh on 23rd July, 2024.

Order Date :- 4.7.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 21149 of 2024

Petitioner :- Ram Prasad Vishwakarma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Lavkush Kumar Shukla

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. Heard Sri Lavkush Kumar Shukla, learned counsel for the petitioner, Sri Pawan Kumar Mishra, learned counsel for respondent nos. 2 and 3 and learned Standing Counsel for the State-respondents.
2. The prayer made in the instant petition is for quashing the notice of provisional assessment dated 16.05.2024 issued by respondent no. 2 in a case of alleged theft of electricity.
3. Counsel for the petitioner admits that the petitioner has already filed objections against the said notice, which has not been decided so far.
4. Consequently, no ground is made out to quash the impugned notice of provisional assessment.
5. The petition is disposed of with direction to the concerned Executive Engineer to pass order of final assessment strictly, in accordance with the provisions prescribed under the U.P. Electricity Supply Code, 2005.
6. In case, any application for compounding of offence is still pending, the same shall also be disposed of in accordance with law.

Order Date :- 23.7.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)